

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

15. JUDY MARCUM V. ZACHARY NUGENT

21FL0051

Respondent filed a Request for Order (RFO) on February 20, 2026, seeking a modification of the current parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) for an appointment on March 23, 2026, and a review hearing on May 21, 2026. Proof of Service shows Petitioner was only served with the FL-300.

Petitioner filed an RFO on March 23, 2026, seeking a modification of the current parenting plan orders. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Only Petitioner appeared at CCRC as such a single parent report was filed on May 7, 2026, with no recommendations. Copies were mailed to the parties on May 8th.

The court drops Respondent's RFO from calendar due to the failure to properly serve Petitioner as well as for Respondent's failure to appear at CCRC which was set at his request.

The court drops Petitioner's RFO from calendar due to the failure to properly serve Respondent.

All prior orders remain in full force and effect.

TENTATIVE RULING #15: THE COURT DROPS RESPONDENT'S RFO FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE PETITIONER AS WELL AS FOR RESPONDENT'S FAILURE TO APPEAR AT CCRC WHICH WAS SET AT HIS REQUEST.

THE COURT DROPS PETITIONER'S RFO FROM CALENDAR DUE TO THE FAILURE TO PROPERLY SERVE RESPONDENT.

ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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**THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE
8.05.07.**

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16. SIERRA OLSON V. JUAN CHAVEZ

PFL20140209

Respondent filed a Request for Order (RFO) on April 6, 2026, along with a declaration regarding address verification, a declaration under the UCCJEA, and a declaration regarding visitation and records. There is no Proof of Service for these documents.

Petitioner filed a Responsive Declaration on May 6, 2026, which does not object to service, therefore, the court deems the issue to be waived. Petitioner objects to Respondent's requests for custody and parenting plan orders.

Respondent filed a Declaration on May 12, 2026. It was mail served on May 12, 2026.

The court has read and considered the filings as outlined above. The court notes the parties were not referred to Child Custody Recommending Counseling (CCRC), as they had previously been referred in the prior six months. Petitioner did not attend CCRC as she was not properly served. The court finds good cause to refer the parties to CCRC at this time. Parties are to attend CCRC on Thursday, July 2nd at 9:00 AM with Michaela Murphy and return for a review hearing on Thursday August 13th at 1:30 PM in Department 5.

Pending the review hearing, all prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO REFER THE PARTIES TO CCRC AT THIS TIME. PARTIES ARE TO ATTEND CCRC ON THURSDAY, JULY 2ND AT 9:00 AM WITH MICHAELA MURPHY AND RETURN FOR A REVIEW HEARING ON THURSDAY, AUGUST 13TH AT 1:30 PM IN DEPARTMENT 5 PENDING THE REVIEW HEARING, ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*